

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON

DARLIN GRAY, individually and on behalf of
all others similarly situated,

Plaintiff,

v.

TWITTER, INC.,

Defendant.

No. 2:20-cv-1389

CLASS ACTION COMPLAINT

JURY DEMAND

Plaintiff, individually and on behalf of all others similarly situated, alleges the following based upon personal knowledge as to Plaintiff and Plaintiff's own acts, and upon information and belief as to all other allegations, based on investigation of counsel. This investigation included, *inter alia*, a review of public statements and disclosure materials prepared by Defendant; review of Federal Trade Commission filings; FOIA requests to FTC; media reports; interviews; social media; and other information concerning Defendant. The investigation of the facts pertaining to this case is continuing. Plaintiff believes that substantial evidentiary support will exist for the allegations set forth herein after a reasonable opportunity for discovery.

I. INTRODUCTION

1. Privacy is a 21st century civil rights issue that affects everyone who interacts on digital platforms.

2. Behemoth providers of ubiquitous digital platforms make promises of privacy when they solicit users. Too often, those promises are not kept.

4. Those powerful companies disregard their promises to users about privacy because of strong financial incentives. Using and trading in private user data can be extraordinarily lucrative for those companies which do so.

6. Privacy violators also often contend that the harm to an individual is *de minimus*, thereby making it prohibitively expensive for an individual to protect her privacy rights.

8. As with other civil rights violations, legislatures have established statutory violations, and set a specific amount of statutory damages, together with an award of attorneys' fees and the costs of suit.

10. This suit seeks statutory damages together with attorneys' fees, other costs of litigation, and prejudgment interest, resulting from the acts of Defendant Twitter, Inc. ("Twitter") which engaged in the unauthorized procurement of telephone records of Plaintiff and the Class in violation of RCW 9.26A.140.

11. Plaintiff is entitled to bring this private action to enforce RCW 9.26A.140 by virtue of that statute and by virtue of RCW 9A.82.010 and 9A.82.100.

12. This Court has subject matter jurisdiction over the claims pursuant to 28 U.S.C. § 1332(d)(2) because the amount in controversy exceeds \$5,000,000 exclusive of interest and costs

1 and all members of the putative class of plaintiffs are citizens of a State different from Defendant
2 Twitter, Inc. (“Twitter”).

3 13. This Court has personal jurisdiction over Twitter because it has purposefully
4 directed its activities at this State and this judicial district, including by opening and maintaining
5 and office and employees in this State and judicial district.

6 14. Twitter has also consummated a transaction with at least one resident of the State
7 and judicial district, including Plaintiff.

8 15. This Court has personal jurisdiction over Twitter because it has performed acts by
9 which it purposefully avails itself of the privilege of conducting activities in this State and judicial
10 district, thereby invoking the benefits and protections of the laws of this State.

11 16. This Court has personal jurisdiction over Twitter because the claim arises out of or
12 relates to Twitter’s forum-related activities.

13 17. This Court has personal jurisdiction over Twitter because the exercise of
14 jurisdiction over Twitter as to the allegations of this Complaint comport with fair play and
15 substantial justice.

16 18. Venue is proper in this Court pursuant to 28 U.S.C. § 1391(b)(2) and (3) because a
17 substantial part of the events or omissions giving rise to the claim occurred in this State and judicial
18 district and because Twitter is subject to personal jurisdiction in this State and judicial district.

19 **III. PARTIES**

20 19. Plaintiff Darlin Gray (“Gray”) is a Twitter user with the username @darlingray.

21 20. Plaintiff Gray is now, and at all times relevant to this Complaint has been, a
22 Washington resident.

23 21. Twitter is a Delaware Corporation with a principal place of business in San
24 Francisco, California.

25 22. Twitter is a for-profit company.

26 23. Twitter acts at all times for financial gain.

IV. FACTS

A. Twitter Is A Telecommunications Company.

24. Under Washington law, “[t]elecommunications’ is the transmission of information by wire, radio, optical cable, electromagnetic, or other similar means. As used in this definition, ‘information’ means knowledge or intelligence represented by any form of writing, signs, signals, pictures, sounds, or any other symbols.” RCW 80.04.010(27); *see also* RCW 9.26A.100 (“‘Telecommunications’ shall have the same meaning as that contained in RCW 80.04.010 and includes telecommunications service that originates, terminates, or both originates and terminates in this state”).

25. Under Washington law, “[t]elecommunications company’ includes every corporation, company, association, joint stock association, partnership and person, their lessees, trustees or receivers appointed by any court whatsoever, and every city or town owning, operating or managing any facilities used to provide telecommunications for hire, sale, or resale to the general public within this state.” RCW 80.04.010(28); *see also* (“‘Telecommunications company’ shall have the same meaning as that contained in RCW 80.04.010”).

26. Twitter transmits knowledge or intelligence represented by any form of writing, signs, signals, pictures, sounds, or any other symbols by wire, radio, optical cable, electromagnetic, or other similar means.

27. Twitter provide telecommunications for hire, sale, or resale to the general public within this state, at least by virtue of its provision, for money, of advertising to Twitter users.¹

28. Twitter is a telecommunications company.

29. Twitter provides telecommunications service that either originates, or terminates, or both originates and terminates in the state of Washington.

30. Telephone numbers are “telephone records” as defined in RCW 9.26A.140, inasmuch as they comprise “information retained by a telecommunications company that relates

¹ *See* <https://business.twitter.com/en/help/ads-policies/campaign-considerations/about-eligibility-for-twitter-ads.html> (last accessed September 20, 2020).

1 to the telephone number dialed by the customer or the incoming number or call directed to a
2 customer, or other data related to such calls typically contained on a customer telephone bill such
3 as the time the call started and ended, the duration of the call, the time of day the call was made,
4 and any charges applied.” RCW 9.26A.140.

5 31. Telephone numbers are telephone records which pertain to the person whose
6 telephone number it is.

7 32. Each telephone number is a telephone record which pertains to at least the user
8 associated with that telephone number.

9 33. A telephone record may pertain to a person other than the person who pays for the
10 telephone service associated with that number.

11 34. For example, in so-called “friends and family” type plans, one person might be
12 contractually responsible for paying the invoicing for multiple telephone numbers, where all but
13 one of the telephone numbers pertains to other persons.

14 35. In that type of arrangement, a telephone number constitutes a record that pertains
15 to a user who is not the financially responsible subscriber.

16 **B. Twitter’s Unlawful Procurement Of Telephone Records.**

17 36. Twitter procured a telephone record which pertains to Gray.

18 37. Specifically, Twitter procured Gray’s telephone number from Gray.

19 38. Twitter did so with fraudulent, deceptive, or false means.

20 39. Those means included assurances to Gray that Gray could designate the uses to
21 which the telephone number was put, thereby maintaining control over the use of the telephone
22 number by Twitter, through functions made available on Twitter’s user-facing systems.

23 40. In making these representations, Twitter falsely assured Gray that it would honor
24 the privacy choices exercised by her, a user.

25 41. Gray provided her telephone number, a telephone record which pertains to her, to
26 Twitter.

1 42. She did so in reliance on Twitter's fraudulent, deceptive, or false means, namely,
2 assurances that she could designate the uses to which the telephone number was put and thereby
3 maintain control over the use of the telephone number by Twitter, through functions made
4 available on Twitter's user-facing systems.

5 43. Twitter procured telephone records which pertain to other Washington persons.

6 44. Specifically, Twitter procured telephone numbers from other Washington persons.

7 45. Twitter did so with fraudulent, deceptive, or false means.

8 46. Those means included assurances to other Washington persons that they could
9 designate the uses to which the telephone number was put, thereby maintaining control over the
10 use of the telephone number by Twitter, through functions made available on Twitter's user-facing
11 systems.

12 47. In making these representations, Twitter falsely assured Washington users that it
13 would honor the privacy choices exercised by users.

14 48. Other Washington persons provided telephone numbers, telephone records which
15 pertains to each of them, to Twitter.

16 49. They did so in reliance on Twitter's fraudulent, deceptive, or false means, namely,
17 assurances that each person could designate the uses to which the telephone number was put and
18 thereby maintain control over the use of the telephone number by Twitter, through functions made
19 available on Twitter's user-facing systems.

20 50. Twitter did not honor the privacy choices exercised by Gray or other Washington
21 users.

22 51. Twitter provided to Gray and each Washington user various screens purportedly
23 for account management that purported to give Gray and other Washington users the ability to
24 control the use to which Twitter put phone numbers it had procured.

25 52. Unbeknownst to Gray or any Washington user, Twitter did not honor the privacy
26 choices exercised by users, as evidenced to Twitter through the account settings selections made
27 on those screens.

1 53. No user knew or could have known of Twitter's fraudulent, deceptive, and false
2 representations regarding its false assurances that it honored the privacy choices exercised by users
3 prior to October 8, 2019.

4 54. Twitter concealed its wrongdoing until October 8, 2019.

5 55. On October 8, 2019 Twitter publicly acknowledged that "when [users] provided an
6 email address or phone number for safety or security purposes (for example, two-factor
7 authentication) this data may have inadvertently been used for advertising purposes, specifically
8 in our Tailored Audiences and Partner Audiences advertising system."²

9 56. Whatever Twitter means by "inadvertent," it used fraudulent, deceptive, or false
10 means to obtain the telephone record of Gray.

11 57. Whatever Twitter means by "inadvertent," it used fraudulent, deceptive, or false
12 means to obtain the telephone records of other Washington users.

13 58. Twitter used fraudulent, deceptive, or false means to obtain telephone records,
14 namely telephone numbers, from Gray and countless other Washington users.

15 59. Those means included promising users that Twitter would honor the privacy
16 choices exercised by users regarding the use of telephone numbers through user-facing Twitter
17 systems.

18 60. However, despite its false promises, Twitter did not create, implement, or execute
19 systems that honored users' designations as to use of those numbers.

20 61. In doing so, Twitter's fraudulent, deceptive, or false means in obtaining the
21 telephone numbers increased its revenue, by increasing the amount advertisers paid it for ads.

22 62. Twitter committed its acts of fraudulent, deceptive, or false means of obtaining
23 telephone records for financial gain.

24 63. A reasonable opportunity for discovery will also reveal whether Twitter disclosed
25 telephone numbers to advertisers, despite its recent assurances to the contrary.

26
27 ² See <https://help.twitter.com/en/information-and-ads#10-08-2019> (last accessed
September 20, 2020).

64. If so, it also “[i]ntentionally [sold] the telephone record of any resident of this state without the authorization of the customer to whom the record pertains.” RCW 9A.26.140.

65. If so, it committed that act of sale for financial gain.

C. Civil Remedy.

66. Due to the foregoing conduct, Twitter is “subject to legal action for injunctive relief and either actual damages, including mental pain and suffering, or liquidated damages of five thousand dollars per violation, whichever is greater.” RCW 9A.26.140.

67. Each telephone number Twitter obtained from a Washington person constitutes a separate violation of RCW 9A.261.40, subject to \$5,000 liquidated damages.

68. Each separate occasion on which Twitter disclosed the telephone number of a Washington person to advertisers, thereby increasing the fees paid by those advertisers, constitutes a separate violation subject to \$5,000 liquidated damages.

69. Gray has sustained injury to her person, business, or property by Twitter’s acts that are part of a pattern of acts included in RCW 9A.82.010(4)(nn).

70. Gray may therefore file an action for the recovery of damages and the costs of the suit, including reasonable investigative and attorney’s fees.

V. CLASS ALLEGATIONS

71. Gray brings this action as a class action pursuant to Rules 23(a) and 23(b)(2) and or (b)(3) of the Federal Rules of Civil Procedure on behalf of the following Class of persons:

All Washington persons who provided a telephone number to Twitter prior to October 8, 2019.

72. Excluded from the Class is any person, firm, trust, corporation, or other entity related to or affiliated with Defendant.

73. Gray reserves the right to amend the Class definition if further investigation and/or discovery indicate that the Class definition should be narrowed, expanded, or otherwise modified.

74. Upon information and belief, numerous Washington persons provided telephone numbers to Twitter.

75. Upon information and belief, the number of individuals and entities who comprise the Class are so numerous that joinder of all such persons is impracticable and the disposition of their claims in a class action, rather than in individual actions, will benefit both the parties and the courts.

76. Upon information and belief, class members may be identified from records maintained by Defendants, and may be notified of the pendency of this action by mail or electronic mail using the form of notice similar to that customarily used in class actions, including by using Twitter's telecommunications service.

77. Gray's claims are typical of the claims of the other members of the Class. All members of the Class have been and/or continue to be similarly affected by Defendant's wrongful conduct as complained of herein. Gray is unaware of any interests that conflict with or are antagonistic to the interests of the Class.

78. Gray will fairly and adequately protect the Class members' interests and has retained counsel competent and experienced in class actions and complex litigation. Gray and Gray's counsel will adequately and vigorously litigate this class action, and Gray is aware of her duties and responsibilities to the Class.

79. Defendant has acted with respect to the Class in a manner generally applicable to each Class member. Common questions of law and fact exist as to all Class members and predominate over any questions affecting individual Class members. The questions of law and fact common to the Class include, *inter alia*:

- a. Whether Defendant obtained telephone records which pertain to residents of this state through fraudulent, deceptive, or false means;
- b. Whether Defendant intentionally sold the telephone records of residents of this state; and
- c. The remedies available to Gray and the Class.

80. A class action is superior to all other available methods for the fair and efficient adjudication of this controversy since joinder of all Class members is impracticable. Furthermore,

as the injury and/or damages suffered by individual Class members may be relatively small, the expense and burden of individual litigation makes it impossible as a practical matter for Class members to individually redress the wrongs done to them. There will be no difficulty in managing this action as a class action.

81. Defendant has acted on grounds generally applicable to the entire Class with respect to the matters complained of herein, thereby making appropriate the relief sought herein with respect to the Class as a whole.

VI. CAUSE OF ACTION

82. Gray hereby incorporates by reference the allegations contained in the preceding paragraphs of this Complaint.

83. This sole Count is brought pursuant to RCW 9.26A.140 and RCW 9A.82.100, on behalf of the Class, against Defendant.

84. Defendant obtained telephone records of residents of this state through fraudulent, deceptive, or false means and/ or intentionally sold the telephone records of residents of this state without the authorization of the customer to whom the record pertains.

85. Pursuant to RCW 9.26A.140, Gray and each member of the Class is entitled to \$5,000 in liquidated damages for each such violation.

VII. PRAYER FOR RELIEF

WHEREFORE, Gray and the Class pray for relief and judgment as follows:

A. Declaring that this action is properly maintainable as a class action under Civil Rule 23, and certifying Gray as the Class representative and Gray's counsel as Counsel for the Class;

B. Declaring that Defendant engaged in the unauthorized procurement and sale of telephone records under RCW 9.26A.140;

C. Awarding Gray and the members of the Class the remedy of statutory damages of \$5,000 for each violation, together with pre- and post-judgment interest;

D. Awarding costs of investigation and litigation, including expert witness costs, and reasonable attorneys' fees, against Defendant;

1 E. Enjoining Defendant from further violations of RCW 9.26A.140; and

2 F. Such other and further relief as this Court may deem just and proper.

3 **VIII. JURY DEMAND**

4 Gray and the Class hereby demand a trial by jury.

5 ///

6 ///

7 ///

8 September 21, 2020.

9 ARD LAW GROUP PLLC

10 By: 

11 Joel B. Ard, WSBA # 40104

12 ARD LAW GROUP PLLC

13 P.O. Box 11633

14 Bainbridge Island, WA 98110

15 Phone: (206) 701-9243

16 ATTORNEYS FOR PLAINTIFF AND THE
17 PUTATIVE CLASS
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CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

Darlin Gray, individually and on behalf of all others similarly situated

(b) County of Residence of First Listed Plaintiff King

(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

Joel B. Ard, Ard Law Group PLLC

P.O. Box 11633, Bainbridge Island, WA 98110

(206) 701-9243

DEFENDANTS

Twitter, Inc.

County of Residence of First Listed Defendant _____

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☐ 2 U.S. Government Defendant
- ☐ 3 Federal Question (U.S. Government Not a Party)
- ☒ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|---------------------------------------|---------------------------------------|---|----------------------------|---------------------------------------|
| Citizen of This State | ☒ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☒ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☒ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)Click here for: [Nature of Suit Code Descriptions.](#)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 835 Patent - Abbreviated New Drug Application ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g))	☐ 375 False Claims Act ☐ 376 Qui Tam (31 USC 3729(a)) ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit (15 USC 1681 or 1692) ☐ 485 Telephone Consumer Protection Act ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☒ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement	FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	
		LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act		
		IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions		

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District (specify)
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTIONCite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
28 U.S.C. § 1332(d)(2)

Brief description of cause:

Violations of RCW 9.26A.140 for wrongful procurement of telephone records

VII. REQUESTED IN COMPLAINT:☒ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

5,000,000.00

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No**VIII. RELATED CASE(S) IF ANY**

(See instructions):

JUDGE _____

DOCKET NUMBER _____

DATE

09/21/2020

SIGNATURE OF ATTORNEY OF RECORD

/s/ Joel B. Ard

FOR OFFICE USE ONLY

RECEIPT # _____

AMOUNT _____

APPLYING IFP _____

JUDGE _____

MAG. JUDGE _____

UNITED STATES DISTRICT COURT

for the

Western District of Washington

Darlin Gray, individually and on behalf of all others
similarly situated

Plaintiff(s)

v.

Twitter, Inc.

Defendant(s)

Civil Action No. 20-cv-1389

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Twitter, Inc.
1355 Market Street, Suite 900
San Francisco, California 94103

c/o its Registered Agent, C T Corporation System
818 West Seventh Street, Suite 930
Los Angeles, CA 90017

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Joel B. Ard
Ard Law Group PLLC
P.O. Box 11633
Bainbridge Island, WA 98110

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. 20-cv-1389

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____ .

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____, a person of suitable age and discretion who resides there,
 on *(date)* _____, and mailed a copy to the individual's last known address; or

☒ I served the summons on *(name of individual)* _____, who is
 designated by law to accept service of process on behalf of *(name of organization)* Twitter, Inc.
 _____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc: